FAYETTE TOWNSHIP
JUNIATA COUNTY, PENNSYLVANIA

ORDINANCE NO. 4 OF 2026

AN ORDINANCE OF THE BOARD OF SUPERVISORS OF FAYETTE TOWNSHIP, JUNIATA COUNTY, PENNSYLVANIA, TO AMEND THE FAYETTE TOWNSHIP ZONING ORDINANCE OF 2000, TO DEFINE AND ADD SPECIFIC REQUIREMENTS FOR DATA CENTERS

WHEREAS, Fayette Township, Juniata County, Pennsylvania (the "Township") is a Pennsylvania Second Class Township and is governed by the Pennsylvania Second Class Township Code, 53 P.S. § 65101, et seq., and must comply with Pennsylvania's Municipalities Planning Code, 53 P.S. § 10101, et seq. (the "MPC"); and

WHERAS, Article VI of the MPC entitled "Zoning", 53 P.S. §10601, et seq., authorizes the Township to enact, amend and repeal Zoning Ordinances within the Township; and

WHEREAS, Section 609 of the MPC, 53 P.S. §106098, sets forth the procedures for zoning ordinance amendments; and

WHEREAS, the Township adopted the Fayette Township Zoning Ordinance of 2000 on October 13, 2000, which has been amended from time to time; and

WHEREAS, the Board of Supervisors of Fayette Township desires to add provisions to the Township's Zoning Ordinance relating to Data Centers; and

WHEREAS, the Board of Supervisors of the Township deems it to be in the best interest and general welfare of the citizens and residents of the Township to update and amend provisions of the Zoning Ordinance to provide for the uses of Data Centers.

NOW, THEREFORE, BE IT ORDAINED AND ENACTED and it is hereby ordained and enacted by the Board of Supervisors of Fayette Township, Juniata County, Pennsylvania, as follows:

SECTION 1. DEFINITIONS

COMMUNITY NOISE EQUIVALENT LEVEL (CNEL) – The 24-hour A-weighted average sound level from midnight to midnight, obtained after the addition of 5 dB to sound levels occurring in the evening from 7 PM to 10 PM and after the addition of 10 dB to sound levels occurring in the night between 10 PM and 7 AM.

DATA CENTER – A facility used primarily for the storage, management, processing, and transmission of digital data, which houses computer or network equipment, systems, servers, appliances and other associated components related to digital data operations. The facility may

also include air handlers, power generators, water cooling and storage facilities, utility substations, and other associated utility infrastructure to support sustained operations at the Data Center.

DATA CENTER ACCESSORY USE – Ancillary uses or structures secondary and incidental to a Data Center use, including but not limited to: administrative, logistical, fiber optic, storage, and security buildings or structures; sources of electrical power such as generators used to provide temporary power when the main source of power is interrupted; electrical substations; utility lines, domestic and non-contact cooling water and wastewater treatment facilities; water holding facilities; pump stations; water towers; environmental controls (air conditioning or cooling towers; fire suppression, and related equipment), and security features, provided such Data Center Accessory Uses/structures are located on the same tract or assemblage of adjacent parcels developed as a unified development with a Data Center. The use shall not include energy generation systems used or intended to be used to supply power to the Data Center during normal operations.

DATA CENTER ELECTRICAL SUBSTATION – A facility used for the transformation or transmission and/or switching of voltages to distribution voltages which switches circuits and distributes usable/consumable electric power, specifically for Data Center users on the same or adjacent site, or on a site immediately across a road right-of-way.

DATA CENTER PRINCIPAL BUILDING – A building that contains the office and/or data storage functions of a Data Center.

FOOTCANDLE – Enough light to saturate a one-foot square with one lumen of light.

SENSITIVE RECEPTORS – Schools, preschools, day care centers, in-home daycares, health facilities such as hospitals, long term care facilities, retirement and nursing homes, community centers, places of worship, playgrounds, parks (excluding trails), campgrounds, prisons, dormitories, and any residence where such residence is not located on a parcel with an existing industrial, commercial, or unpermitted use as determined by the zoning officer.

SECTION 2. SPECIFIC USE CRITERIA

A. Application. The following requirements shall apply to all Data Centers. In the event that any of the following regulations are found to be in conflict with regulations found elsewhere in the Fayette Township Zoning Ordinance, the most restrictive regulations shall be applied, unless otherwise stated.

B. Where Permitted.

1. All principal and accessory structures, including but not limited to Data Center Accessory Uses, associated with a Data Center shall be permitted by right in areas zoned Industrial, subject to compliance with the requirements of this Ordinance, and are subject to approval for a special exception or conditional use in areas zoned Commercial. Establishment of all principal and accessory structures associated with a Data Center are prohibited in all other zones.

2. In addition to compliance with the requirements of this Ordinance, an Applicant seeking to erect any Data Center Principal Building, Data Center Accessory Use, or Data Center Electrical Substation shall also submit a Township Land Use and Building Permit application(s).

C. Building Placement and Orientation.

1. All principal and accessory structures, include but not limited to a Data Center Principal Building, Data Center Accessory Use or Data Center Electrical Substation, shall be arranged, designed, and constructed to be harmonious and compatible with the site and with the surrounding properties. In general, Data Centers that visually approximate commercial office buildings are encouraged.

2. Buildings shall be sited and oriented to:

   i. Minimize visual impacts of the bulk of the building when examined on a line-of-sight basis from adjacent public streets and Sensitive Receptor areas.
   ii. Provide safe and convenient vehicular access to the site, including sufficient on-site queuing areas at security gates.
   iii. Accommodate adequate parking.
   iv. Minimize impacts to natural resources.

3. Data Center campuses containing more than one building are encouraged to provide a variety in building size, massing, siting, and appearance by transitioning from smaller or lower buildings along street frontages to larger and taller structures on the interior of the site. Consideration of topography shall be given to avoid placement of larger, taller, or more massive buildings in a prominent location on the property or along a public street.

D. Maximum Height. The maximum building height for Data Centers shall be 35 feet.

E. Setbacks.

1. All Data Center Principal Buildings, Data Center Accessory Uses, and Data Center Electric Substations must be set back at least 100 feet from all property lines.

2. Parking lots for Data Centers shall be set back at least 50 feet from public road rights-of-way, and 50 feet from all property lines.

F. Parking Requirements. A minimum of 1 parking space per employee on the largest shift is required, plus an additional 3 visitor spaces.

G. Off Street Loading. A minimum of 1 loading space is required. Loading spaces/bays are only permitted to be located on one façade of the Data Center Principal Building.

H. Noise/Vibration

1. CNEL
    i. The Community Noise Equivalent Level (CNEL) at the boundary of the property containing a Sensitive Receptor shall not exceed 60 dBA.
    ii. The CNEL at the boundary of any developed property not containing a Sensitive Receptor shall not exceed 70 dBA.
    iii. Sound that is produced for not more than a cumulative period of one (1) minute in any hour may exceed the standards above by up to ten (10) dBA.
    iv. The maximum sound levels listed above do not apply to emergency alerts, emergency work to provide electricity, water, or other public utilities when public health or safety is involved, snow removal, or road repair.
    v. In addition to dBA levels, the developer will need to be able to show that C-weighted noise (dBC) and Octave Bands (dBZ) will also be maintained at acceptable levels.

2. A noise reduction barrier or device may be required at the discretion of the zoning officer when it is inconclusive that noise level tests do not conform to acceptable noise levels.

3. The limitations of this Section herein shall not apply to any Sensitive Receptor that is established adjacent to the Data Center after the date of issuance of a certificate of completion or occupancy for the applicant's operation.

4. Sound Study
    i. Any proposal for a Data Center shall include pre- and post-construction sound studies which examine all exterior utility functions of the building (rooftop and ground-mounted) that produce sound. The sound studies shall identify compliance with this Section as applicable. The sound studies shall be conducted by an Institute of Noise Control Engineering (INCE) Board Certified Engineer and shall be subject to review and approval by an engineer with experience in noise control selected by the Township.
    ii. The pre-construction sound study shall be submitted with the permit/application and/or Conditional Use/Special Exception application. The pre-construction sound study shall recommend the sound reducing materials or systems required to meet the aforesaid sound limits.
    iii. The post-construction sound study shall be conducted prior to issuance of the certificate of occupancy. An as-built sound study may also be required thereafter by the Township. If it is determined by the as-built sound study that there is a violation of the aforesaid sound limits, the owner or occupant of the Data Center shall promptly remediate the violation to achieve compliance with the sound limits.

I. Negative Impacts. Any use or activity producing air, dust, smoke, glare, exhaust, heat, or humidity in any form shall be carried on in such a manner that it is not perceptible at or beyond the property line.

J. Safety. The equipment used in any Data Center operation shall be housed in a metered, electrically grounded, and pre-engineered metal-encased structure with a fire rating

designed to resist an internal electrical fire for at least 30 minutes. The containment space shall contain baffles that automatically close in the event of fire, independent of a possible electric system failure. Any Data Center use proposing battery storage or any other device or group of devices capable of storing energy in order to supply electrical energy at a later time, whether the energy is stored for use on-site or off-site, shall demonstrate compliance with National Fire Protection Association (NFPA) Standard 855, Installation of Stationary Energy Storage Systems, or similar standards and must include fire suppression systems designed specifically for battery storage.

K. Power. Prior to approval of the certificate of completion or occupancy, the applicant shall provide written verification from the applicable service provider stating the following:

1. Adequate capacity is available on the applicable supply lines and substation to ensure that the capacity available to serve the other needs of the service area is consistent with the normal projected load growth envisioned by the provider;

2. Utility supply equipment and related electrical infrastructure are sufficiently sized and can safely accommodate the proposed use;

3. Any system designed for cooling and operation of the facility (electricity, water, or other means) will be adequate and will not negatively impact the surrounding region;

4. The energy storage capacity of the system used (if applicable) will be defined;

5. Efforts will be made to maximize the use of renewable or clean energy;

6. The use will not cause electrical interference or fluctuations in line voltage on and off the operating premises; and

7. Prior to approval of the certification of completion or occupancy, the applicant shall provide the municipality with written verification that the electrical work has passed a third-party final inspection.

L. Lighting.

1. Horizontal Surfaces. For the lighting of predominantly horizontal surfaces, such as, but not limited to, parking areas, roadways, vehicular and pedestrian passage areas, loading docks, building entrances, sidewalks, bicycle paths, and site entrances, luminaires shall be aimed down, and shall meet Illuminating Engineering Society of North America (IESNA) full cut-off/fully shielded criteria.

2. Non-Horizontal Surfaces. For the lighting of predominantly non-horizontal surfaces, such as, but not limited to, facades, landscaping, and signs, luminaires shall be shielded and shall be installed and aimed to not project their output into the windows of neighboring residences, adjacent uses, past the object being illuminated, skyward, or onto a public roadway.

3. Adjacent Residential Uses. The illumination projected onto a residential use shall at no time exceed 0.1 footcandle, measured line-of-sight and from any point on the receiving residential property.

4. Adjacent Non-Residential Uses. The illumination projected from any property onto a nonresidential use shall at no time exceed 0.5 initial footcandle, measured line-of-sight from any point on the receiving property.

5. Glare vegetation screens shall not be employed to serve as the primary means for controlling glare. Rather, glare control shall be achieved by using means such as cutoff luminaires, shields and baffles, and appropriate application of luminaire mounting height, wattage, aiming angle, and luminaire placement.

6. LED Lights. LED light sources shall have a correlated color temperature that does not exceed 3000K.

7. Luminaires. Luminaires shall not be mounted more than 20 feet above the finished grade of the surface being illuminated. No pole-mounted lighting on the roof shall be permitted.

8. Lighting After Hours. Lighting for parking areas and vehicular traffic ways shall be automatically extinguished nightly within ½ hour of the close of the facility. On/off control shall be by an astronomic programmable controller with battery or capacitor power-outage reset. When after-hours site safety/security lighting is proposed, such lighting shall not exceed 25% of the number of fixtures required or permitted for illumination during regular business hours. Where there is reduced but continued onsite activity throughout the night that requires site-wide even illumination, the use of dimming circuitry to lower illumination levels by at least 50% after 11 PM or after regular business hours, or the use of motion sensor control, shall be permitted.

M. Perimeter Fencing/Security. Fences shall not exceed 10 feet in height above ground and shall be of high-quality design and materials.

N. Power Lines and Data Center Electric Utility Substations.

1. Data Center Electrical Substations must include year-round opaque landscaping or a screen wall a minimum of 10 feet in height to minimize visual impact.

2. Electric Utility Substations on the same property as the Data Center they serve must be located on the side or rear of a Data Center Principal Building so they are screened from public view and must not be located in a required front yard. On-site substations do not require a buffer or screening between the Data Center Principal Building and the substation.

3. Burying power lines serving the property is strongly encouraged. On-site power lines of 34.5 kV and below must be buried.

4. The Data Center Electrical Substation shall be subject to applicable zoning district setback requirements. Setbacks shall be measured from the edge of the compound containing the substation to the property boundary of the lot it occupies. Lighting Adjacent to Non Residential Uses Ordinances YCPC reviewed for sample language have shown light trespass maximums from 0.1 to 2.0 footcandles.

O. Emergency Contact Information Each Data Center operation shall provide 24-hour emergency contact signage visible at the access entrance. Signs shall include the company name (if applicable), the owner/representative's name, the telephone number, and the corresponding local power company's name and telephone number.

P. Sensitive Receptors. Unless physically impossible, energy substations, generators, HVAC units, and other noise and odor creators shall be oriented away from abutting Sensitive Receptors. Screening as described in "Buffer Yards and Screening" shall be provided. When making feasibility decisions, the Township must consider existing laws and regulations and balance public safety with the site development's potential impacts on nearby Sensitive Receptors.

Q. Buffer Yards and Screening. All Data Center operations shall provide buffer yards and screening along all property boundary lines, except for areas of ingress and egress into the site.

1. Service Areas - Loading bays, refuse collection areas, and service entrances shall be screened from view from existing or planned public roads, Sensitive Receptors, and residential zoning districts. Screening may include year-round landscaping or a screen wall of an appropriate height to mitigate visual impacts as determined by a line-of-sight study submitted by the applicant.

2. Mechanical/Electrical Equipment Screening

    i. Ground-Mounted

        1. Ground-mounted equipment adjacent to and serving the Data Center Principal Building shall be completely screened behind an opaque wall or fence. When the equipment is located between buildings, a combination of walls and gates may be used at the openings between buildings.

        2. When in or adjacent to an industrial use or zoning district, ground-mounted equipment screening is only required from any existing or planned public road.

        3. Ground-mounted equipment is prohibited in any required setback.

ii. Roof-Top

1. All roof-top-mounted equipment shall be screened by a parapet wall, equipment penthouse, or visually solid screen on all four sides that is constructed of materials complementary to those used in the exterior construction of the Data Center Principal Building. This shall be accomplished by setting the penthouse or screened area back from the façade of the building such that the top of the penthouse or screen is below a 45-degree line drawn from the top of the parapet. Roof-top equipment to be screened includes, but is not limited to, the following: cooling, ventilation, and power supply machinery.

2. Roof-top equipment that is visible above the parapet wall shall be set back from the exterior or parapet wall a distance no less than the height of said equipment.

3. Roof-top equipment may exceed the applicable maximum district building height when completely screened pursuant to this ordinance.

4. Roof-top equipment may occupy up to a maximum of __% of the roof area when screened per this ordinance and, when combined with the height of the Data Center Principal Building, does not exceed the maximum building height requirement.

3. Buffering

i. Data Center Principal Buildings, Data Center Accessory Uses Accessory and Data Center Electrical Substations abutting Sensitive Receptors or collector/arterial roads must include an enhanced buffer yard with required plantings located on an earthen berm with a grade no steeper than 2:1. The minimum height of the berm abutting Sensitive Receptors is __ feet, and abutting collector/arterial roads is __ feet.

ii. Where the combined footprint of the Data Center Principal Building is less than 100,000 square feet:

a. A minimum 100-foot buffer yard shall be provided along the entire length of any public street frontage of any property upon which the Data Center is located and along any property line which abuts or is within 500 feet of an existing Sensitive Receptor.

b. A minimum 50-foot buffer yard shall be provided along any property line adjacent to a non-residential use or zone.

iii. Where the combined footprint of the Data Center Principal Building is between 100,000 square feet and 250,000 square feet:

1. A minimum 150-foot buffer yard shall be provided along the entire length of any public street frontage of any property upon which the Data Center is located and along any property line which abuts or is within 500 feet of a Sensitive Receptor.

2. A minimum 50-foot buffer yard shall be provided along all other property lines.

iv. Where the combined footprint of the Data Center Principal Building exceeds 250,000 square feet:

1. A minimum 300-foot buffer yard shall be provided along the entire length of any public street frontage of any property upon which the Data Center is located and along any property line which abuts or is within 500 feet of an existing residential property line or zone, school, daycare center, hospital, place of worship, designated park, or public open space.

2. A minimum 50-foot buffer yard shall be provided along all other property lines.

v. Utilities should be located outside of buffer yards to the maximum extent feasible to maintain a cohesive buffer yard, protect landscaping, and preserve open space. Utilities should be co-located when feasible to minimize the number of utility crossings through the required buffer yard, particularly when such crossings cannot be avoided.

vi. Use of existing vegetation for landscaping and screening is strongly encouraged and may be substituted for new berms and plantings if approved by the Township.

vii. The required number of plant units shall be calculated in accordance with other municipal screening requirements.

viii. Buffer yards along roadways shall be measured from the street right-of-way line.

ix. Where a lot line drainage or utility easement is required, the buffer yard shall be measured from the inside edge of the easement.

x. Buffer yards shall not include environmental encumbrances such as, but not limited to, wetlands, wetland transition areas, riparian buffers, and flood hazard areas as may be imposed by outside agencies.

xi. The buffer yard shall include a dense landscape buffer consisting of the following:

1. One (1) large evergreen tree per 25 linear feet of buffer. The size of large evergreen trees shall be a minimum of eight (8) feet in height at the time of planting. Narrow/upright evergreen species may also be used within buffers at a ratio of 3:1. No more than 25% of the total required large evergreen species can be substituted with narrow/upright species.
2. One (1) canopy (shade) tree per 75 linear feet of buffer. The size of canopy (shade) trees shall be a minimum of 2 ½ inch caliper at the time of planting.
3. One (1) ornamental/flowering tree per 50 linear feet of buffer. The size of ornamental/flowering trees shall be a minimum of eight (8) feet in height for multistemmed varieties, or 2 ½ inch caliper at the time of planting for single-stemmed varieties.
4. Five (5) shrubs per 25 linear feet of buffer. Shrubs shall be fully branched and a minimum of three (3) feet in height at the time of planting. Shrubs shall be a combination of evergreen and deciduous species, with a minimum of 50% evergreen.

xii. The landscape buffer shall be located along the outer edge of the buffer yard.

xiii. Plant material within buffer plantings shall meet the following requirements:

1. Be resistant to diesel exhaust.

2. Not identified on the most current Pennsylvania Department of Conservation and Natural Resources (DCNR) invasive species or watch lists.

3. Be hardy within United States Department of Agriculture (USDA) Hardiness Zones 6 and 7.

4. Shall be planted on the top and the exterior of any berm in order to provide effective screening.

5. Shall be arranged in groupings to allow for ease of maintenance and to provide a natural appearance.

6. Shall provide a diversity in plant species, such that no one species accounts for more than 25% of each plant type.

7. The plantings shall be arranged to provide a complete visual screen of the property at least 12 feet in height, measured in addition to the height of any required berm, within three (3) years.

xiv. The buffer yard may be located within the required building setback lines. No impervious surface is permitted within the buffer yard aside from access drives, sidewalks, and associated improvements.

R. Environmental and Community Impact Analysis. Prior to application/permit approval and/or the commencement of the Conditional Use/Special Exception hearing, the applicant shall provide an environmental and community impact analysis. The environmental and community impact analysis shall include:

1. A narrative description prepared by a professional engineer, ecologist, environmental planner or other qualified individual, of the proposed nature of the on-site activities and operations, including the market area served by the facility, the hours of operation of the facility, the total number of employees on each shift, the times, frequencies, and types of vehicle trips generated, the types of materials stored and the duration period of storage of materials, and the relationship to other projects or proposals. The description shall focus on the elements of the environment most likely to be affected as well as potential regional effects and ecological interrelationships.

2. A site plan of the property indicating the location of proposed improvements, flood plains, wetlands, waters of the Commonwealth, and cultural and historic resources on the property and within 500 feet of the boundaries of the property, and the potential for public nuisance to residents resulting from operations.

3. Evidence that the disposal of materials will be accomplished in a manner that complies with state and federal regulations.

4. An evaluation of the potential impacts of the proposed use, both positive and negative, upon:

   i. Emergency services and fire protection;

   ii. Water supply;

   iii. Sewage disposal;

   iv. Solid waste disposal;

   v. School facilities and school district budget;

   vi. Municipal revenues and expenses; and

   vii. Stormwater.

5. Any environmental impacts that are likely to be generated (i.e.., odor, noise, smoke, dust, litter, glare, heat islands, vibration, electrical disturbance, wastewater,

stormwater, solid waste, etc.) and specific measures employed to mitigate or eliminate any negative impacts. The applicant shall further furnish evidence that the impacts generated by the proposed use fall within acceptable levels, as regulated by applicable laws and ordinances.

6. The applicant shall identify all stationary and mobile sources of particulate matter (PM2.5) volatile organic compounds, and nitrogen oxides at the site. The applicant shall specify best management practices for preventing and reducing the concentration of air polluting emissions at the site.

7. Consistency with the Township and County Comprehensive Plan. The applicant shall submit an assessment report of the impact of the proposed use on the goals of the respective Township and County Comprehensive Plans. Where the proposed use conflicts with the comprehensive plan, the analysis report shall identify mitigation measures that may be undertaken to offset any degradation, diminution, or depletion of public natural resources.

8. Critical Impact Areas. In addition to the above, plans should include any area, condition, or feature that is environmentally sensitive or that, if disturbed during construction, would have an adverse impact on the environment.

    i. Critical impact areas include, but are not limited to: floodplains, riparian buffers, streams, wetlands, slopes greater than 15%, highly acidic or highly erodible soils, hydric soils, hydrologic soil groups, areas of high-water table, and mature stands of native vegetation and aquifer recharge and discharge areas.

    ii. A statement of impact upon critical areas and of adverse impacts that cannot be avoided is required to be submitted with the analysis, along with proposed environmental protection measures, procedures, and schedules to minimize damage to critical impact areas during and after construction.

9. If modular, factory-built construction is proposed, details of its construction shall be provided to the Township for review/approval.

S. Water Feasibility Study. A water supply feasibility study shall be prepared to demonstrate that sufficient water resources are available to serve the proposed use if the use involves the use of any water resources. In the event that the proposed use will be served by a public water system or public utility, the applicant shall provide the Township with proof in the form of a will-serve letter. In the event that the use of a private well is proposed, in addition and in conjunction with completion of a feasibility study, the following requirements shall apply:

    1. A professional geologist or hydrogeologist licensed in the Commonwealth of Pennsylvania and qualified to conduct groundwater investigations shall prepare a water resources impact study. The purpose of the study will be to determine if there is an adequate supply of water for the proposed use and to determine the impact of

the additional water withdrawals on existing nearby wells, underlying aquifers and/or nearby surface water features (i.e., streams, wetlands, etc.). The Township Engineer and/or the Township's appropriate professional consultant shall review the impact study work plan, including proposed test well locations and pumping test procedures. Approval of the work plan by the Township Engineer and/or the Township's appropriate professional consultant shall be required prior to implementation.

2. The adequacy of the water supply shall be determined and based upon the peak demand calculations for the proposed use, including, but not limited to, domestic usage and any cooling usage, and used as a conservative estimate by which to perform a groundwater budget analysis. A water system, which does not provide the minimum rate of supply of water for the proposed use, does not meet drinking water quality standards (if applicable), and/or adversely impacts nearby wells, ponds, and streams, shall not be approved by the Township.

3. Water Resources Impact Studies: The water resources impact study shall contain at a minimum the following information:

   a. Calculations of project water demands, including a determination of required fire flows.

   b. Literature review and reference of published geologic and hydrogeologic reports.

   c. A geologic map of the area within a minimum of a one-mile radius of the proposed property boundaries and site.

   d. The location of all faults, lineaments and fracture traces on-site and within 1/2 mile of the proposed property boundaries.

   e. The locations of all existing and proposed wells within 1/4 mile of the site and all large withdrawal wells (100,000 gpd+) within 0.5 mile of the site.

   f. The locations of all test wells (both pumped and observation), along with the proposed lot boundaries, should be located on an accurate site plot plan or base map at a minimum scale of one inch to 500 feet.

   g. Define/map the boundary of the surface watershed in which the proposed development is located (use relevant USGS 7.5-minute topographic map, and/or LIDAR, as a base map). The approximate property boundary for the development shall be delineated on this surface watershed map.

h. Define known sources of groundwater contamination within this mapped surface watershed boundary and evaluate the potential impact(s), if any of this contamination on the proposed ground water use.

i. The location of all existing and proposed on-lot septic systems within 1/4 mile of the site.

j. The location of all streams, perennial and intermittent, within 1/4 mile of the site.

k. Define existing municipal, community, industrial and/or agricultural demands on groundwater resources located within 0.5 mile of the proposed development boundaries.

l. A water-table or potentiometric surface map showing groundwater elevation contours and the direction of groundwater flow.

m. Calculate a water budget for the subject site from available information contained in published literature and government sources for the geologic formation(s) occupying the site. The budget calculations should document long-term average precipitation (inches per year, in/yr), total surface runoff (in/yr), evapotranspiration (in/yr), and groundwater recharge rates (in/yr and gallons per day per acre). The long-term average groundwater recharge rate should be reduced by 40% to estimate the annual amount of groundwater recharge expected during years of drought conditions.

n. Confirm that there are no nearby groundwater users whose withdrawal would inhibit the development from meeting its proposed groundwater usage rate.

o. Compare the total annual groundwater recharge calculated for drought conditions for the proposed development with the peak water demand for the proposed use to determine whether the proposed development can be adequately supplied by the groundwater resource underlying the subject development site.

p. Evaluate the impact of any water, whether used or not used, which is discharged

4. Site Specific Report Requirements: The following site- specific investigations shall be carried out in preparation of the water resources impact study:

a. The installation and testing of new water supply wells for Data Centers shall follow the frequency given below:

1. For a Data Center user proposing to withdraw 25,000 gpd or less, one new test well shall be installed and tested. At least one observation well is required to be monitored during both the pumping/recovery phase of the well test.

2. For a Data Center user proposing to withdraw more than 25,000 gpd but less than 100,000 gpd, two new test wells shall be installed and tested.

3. Prior to the construction of any test wells, the Township must approve the locations.

4. In the event that the proposed well(s) for the Data Center use will fall under the jurisdiction of the Pennsylvania Department of Environmental Protection, the Township shall not grant final plan approval until all necessary permits are obtained from all applicable regulatory agencies.

b. Any well installed in the Township for nonresidential use or testing purposes requires a permit from the Township. During the drilling and construction of the well, proper techniques of well development shall be utilized so as to obtain the best practical yield and quality, which is representative of the aquifer.

c. Each test well shall have an accurate geologic log prepared under the direction of a professional geologist licensed by the Commonwealth by a geologist during the drilling of the well, giving a detailed description of the type and thickness of soils and bedrock formations encountered. Additionally, the log should contain information on the depth and thickness of all water bearing zones encountered and the yield from each zone.

d. Pumping Tests and Recovery Tests. Each new test well shall be pumped at a constant discharge rate for a minimum period of eight continuous hours. The discharge rate shall be appropriate to the blown yield of the well to adequately stress the aquifer but not dewater the well. Recovery levels shall be measured at regular intervals immediately following the pumping period until 90% recovery of the pre-test water level is achieved.

e. During the performance of each pumping recovery test, time-drawdown measurements (within accuracy of 1/10 foot) shall be taken from the pumped well and at least one nearby observation well. The time-drawdown measurements must be taken in both the pumped well and the observation well at the following minimum frequencies:

    1. One reading every minute for the first 10 minutes of the test.

    2. One reading every two minutes for the 10 to 100 minute test interval.

    3. One reading every 10 minutes for the 100 to 300 minute test interval.

    4. One reading every 20 minutes from 300 minutes to the end of the pumping period.

    5. Repeat frequency for recovery phase of test.

f. All observation wells should be located within 200 feet horizontal distance from the pumping well, or be close enough to incur measurable drawdown during the pumping phase of the test. The observation well can be either a) an existing domestic well, but only if the domestic well is not actively pumped for the entire duration of testing (pumping and recovery phases) and its construction details (total depth and cased depth) penetrate the same hydro-geologic unit as the new well, or b) a new supply well on an adjacent lot if that adjacent well penetrates the same hydro-geologic unit as and its construction details (total depth and cased depth) are compatible with the new well being tested, or c) a new well specifically installed as an observation well for test purposes and scheduled for permanent

abandonment following relevant Township requirements after the testing has been completed.

g. The time-drawdown data collected from each pumping test should be used to define the local aquifer characteristics, including hydraulic conductivity, transmissivity, coefficient of storage, and the expected long-term yield of the well(s) being tested. Distance drawdown relationships and impact on surrounding water users from the proposed groundwater withdrawal should be included in the assessment. A groundwater availability analysis should be included in the impact study to demonstrate that there are sufficient groundwater resources within the drainage basin to support both existing users and the proposed withdrawal. Raw time-drawdown data and field testing notes should be included in the report as an appendix.

h. Water samples for chemical analyses should be collected from the pumped wells within one hour of the scheduled end of the pumping phase of each test. Samples shall be analyzed at a DEP-certified laboratory for pH, total dissolved solids, iron, manganese, nitrate-nitrogen and coliform bacteria. A copy of the laboratory analytical report for each sample shall be included and summarized in the report.

i. All water supply wells to be used for domestic purposes shall have a minimum yield of 1 gpm. In the case of low yielding wells, i.e., less than 5 gpm, the proposed water system shall be designed to be able to provide sufficient storage via oversize tanks and/or storage in the well bore to meet expected peak demand (i.e., 300 gpd).

5. Water Resources Impact Study Determination:

a. When a water resources impact study is required, the Board of Supervisors shall only approve the use of on-lot nonresidential use wells when the following conditions are met:

1. The report indicates that justification of the project necessitates consideration of this type of water supply.

2. The anticipated water supply yield is adequate for the type of development proposed.

3. The installation of such systems will not endanger or adversely decrease the groundwater supplies to adjacent properties.

b. When deemed appropriate and necessary by the Township Engineer and/or the Township's appropriate professional consultant, the analysis of the potential hydrologic impact using a groundwater model (i.e., MODFLOW) may be required in addition to the above fieldwork to adequately characterize and predict the overall impact the proposed project will have on availability groundwater resources.

T. Building Colors/Materials. External building materials and colors should reflect the character of the surrounding environment and structures.

U. Emergency Responders. The applicant shall coordinate with the Township and County emergency management coordinator to ensure there is adequate radio coverage for emergency responders within the building based upon the existing coverage levels of the Township and/or County Public Safety Radio Communications System at the exterior of the building, and shall install enhancement systems as needed to meet compliance.

1. The applicant shall submit an Emergency Response Plan (ERP) prepared by a qualified professional. The ERP shall:
    i. Be reviewed by the local fire department and emergency management services as part of the land development process;

    ii. Include detailed procedures for fire suppression, containment, ventilation, and evacuation;

    iii. Include an evaluation of the adequacy of the local fire department equipment;

    iv. Include an evaluation of the access roads and hydrant locations within the site to ensure suitable access for emergency equipment within the site;

    v. Ensure that all first responders receive adequate training specific to the installed system; and

    vi. Include provisions for annual fire safety inspections demonstrating compliance with fire safety standards to be performed by a qualified professional on behalf of the Data Center.

2. Each Data Center operation shall provide 24-hour emergency contact signage visible at the access entrance. Signs shall include the company name (if applicable), the owner/representative's name, the telephone number, and the corresponding local power company's name and telephone number.

V. Decommissioning. Data Centers are recognized as a distinct use that warrants special consideration due to their limited operational lifespans and the potential for residual materials or infrastructure that may require specialized removal or remediation at the end of use. Given the rapid evolution of data storage and processing technologies, applicants shall submit a decommissioning plan for removal of obsolete equipment and site restoration at the end of the facility's operational life. Such plan shall address dismantling and removal of all equipment and appurtenances related thereto, including but not limited to special cabling and electrical components, electronic equipment, special cooling equipment, special power generation, batteries and other associated facilities from the property to a condition where the building and property may be reused for another purpose. These provisions are intended to ensure compatibility with surrounding land uses, maintain long-term land use flexibility, and promote the orderly reuse or redevelopment of the property. When the operation of the Data Center ceases, the recycling or responsible

disposal of decommissioned hardware and materials shall be prioritized to reduce environmental impact. The operator shall partner with certified E-waste recycling facilities to ensure the proper handling and recycling of electronic components.

Prior to issuance of a certificate of occupancy for a Data Center, the owner shall provide financial security, in the form and amount of a bond, irrevocable letter of credit, or other financial security acceptable to the Township, to secure the expense of decommissioning, dismantling, removing, and disposal of the Data Center specific components and equipment, in the amount of 110% of the estimated decommissioning cost minus the salvageable value of the Data Center. The Township reserves the right to review once every five (5) years an engineer's new estimate of probable cost of decommissioning, which shall be submitted for approval in the same manner as the initial submission. The bond, letter of credit, or other financial security acceptable to the Township shall be increased or decreased, as appropriate, upon a finding by the Township that the new estimate appropriately addresses the probable cost of decommissioning. The owner of the Data Center shall pay for all fees associated with the review and approval of each such decommissioning cost estimate by the Township Engineer.

W. Green Building Techniques. Data Centers are encouraged to implement low-impact development practices in site design and energy efficiency, such as, but not limited to, the following:

1. Site Design
    i. Select sites that avoid sensitive lands such as wetlands, floodplains, and steep slopes
    ii. Minimize land disturbance
    iii. Maximize tree preservation
    iv. Minimize impervious surfaces
    v. Minimize potential nuisance impacts (noise, glare, vibration, etc.) on adjacent properties, public roadways, and the vicinity

2. Energy/Resource Efficiency
    i. Orient buildings to take advantage of passive cooling and daylight opportunities
    ii. Utilize alternative energy sources (solar, wind, hydro, etc.) as much as possible
    iii. Provide an energy storage system to monitor and regulate usage of alternative energy for usage during off-peak hours
    iv. Utilize reclaimed water for cooling, if available, promoting its use to regulate cooling output in real-time on workload demands
    v. Incorporate waste heat recovery systems for use on or off-site, and set measurable goals for its implementation
    vi. Encourage systems that limit the use of finite natural resources and their disposal
    vii. Encourage fuel storage that limits impacts on the environment from potential spills
    viii. Install water-efficient landscape materials

ix. Utilize LED exterior/interior lighting

X. LEED Certification. The implementation of energy management best practices and carbon reduction techniques such as, but not limited to, those promoted through the U.S. Department of Energy's Better Buildings Initiative and U.S. Green Building Council's Leadership in Energy and Environmental Design (LEED) Certification system is strongly encouraged.

Y. Woodland Disturbance. Woodland disturbance, including alteration or removal of any hedgerows, shall be minimized. No portions of tree masses, tree lines, hedgerows, or individual freestanding trees measuring six (6) inches or greater in diameter at breast height (DBH) shall be removed unless it is clearly necessary to effectuate the proposed development. In no case shall more than 50% of any existing tree masses, tree lines, hedgerows, or individual freestanding trees with six (6)-inch or greater DBH be removed. For purposes of this subsection, a woodland is defined as a tree mass or plant community in which tree species are dominant or codominant and the branches of the trees form a complete, or nearly complete, aerial canopy. Any area, grove, or stand of mature or largely mature trees (i.e., six (6)-inch or greater DBH) covering an area of .25 of an acre or more, or consisting of more than 50 individual trees six (6) inches or greater DBH, shall be considered a woodland.

Z. Threatened and Endangered Species.
1. PNDI. A Pennsylvania Natural Heritage Program study (PNDI Receipt) dated within two (2) years of the submission of an application for conditional use/special exception or subdivision and land development, whichever is first, as well as any state agency clearance letters required thereby, shall be provided to the municipality.
2. Compliance. The applicant shall comply with all measures directed by the clearance letters to avoid, minimize, or mitigate impacts to endangered, threatened, and special concern species and their habitat.

AA. Riparian Forest Buffer Area. Data Centers subject to the requirements of this Section must satisfy the stricter of the requirements of this Section, or of 25 Pa. Code 102.14, Riparian Buffer Requirements.

1. For purposes of this Section, a riparian buffer is an area of permanent vegetation along a waterway that is left undisturbed to allow for the natural succession of native vegetation. A riparian forest buffer is a type of riparian buffer that consists predominantly of native trees, shrubs, and forbs, providing at least 60% uniform canopy cover.

2. Where the project site contains, is along, or is within 150 feet of a perennial or intermittent river, stream, creek, lake, wetland, floodplain, pond, or reservoir, whether natural or artificial, the use will be subject to the requirements of this Section and shall, in accordance with the requirements of this subsection, do one of

the following: a. Protect an existing riparian forest buffer b. Convert an existing riparian buffer to a riparian forest buffer c. Establish a new riparian forest buffer

3. Where a riparian forest buffer exists, it shall be left intact to meet the width requirements in subsections (6) and (7). An existing riparian forest buffer need not be altered to establish individual Zones 1 and 2 under subsection (9).

4. Riparian buffers that consist predominantly of native woody vegetation that do not satisfy the composition requirements for a riparian forest buffer in subsection (1) or the width requirements in subsections (6) and (7) shall be enhanced or widened, or both, by additional plantings in open spaces around existing native trees and shrubs to provide at least 60% uniform canopy cover for the required width and shall be composed of zones in accordance with subsection (9).

5. On sites without native woody vegetation, a riparian forest buffer providing at least 60% uniform canopy cover shall be established to meet the width requirements in subsections (6) and (7) and be composed of zones in accordance with subsection (9).

6. The width of the riparian forest buffer shall be a minimum of 100 feet on each side of the water body as measured from the top of the bank. The boundary of the buffer shall follow the natural streambank or shoreline.

7. Measured within the 100-foot buffer, the following additional distances shall be added to the minimum width of the riparian forest buffer:

    i. 10 feet if the average slope is 10-15%;

    ii. 20 feet if the average slope is 16-17%;

    iii. 30 feet if the average slope is 18-20%;

    iv. 50 feet if the average slope is 21-23%;

    v. 60 feet if the average slope is 24-25%; or

    vi. 70 feet if the average slope exceeds 25%.

8. In the case of the presence of a nontidal wetland or vernal pond wholly or partially within the riparian buffer area, an additional 25 feet shall be added to the width of the riparian forest buffer area for that portion of the buffer area along the wetland, floodplain, or pond.

9. A new riparian forest buffer or a converted riparian forest buffer shall be composed of zones as follows: a. Zone 1 shall begin at the top of the streambank or normal pool elevation of a lake, pond, or reservoir and occupy a strip of land 50 feet in width, measured horizontally on a line perpendicular from the top of the streambank

or normal pool elevation of a lake, pond, or reservoir. Predominant vegetation must be composed of a variety of native riparian tree species identified in Appendix C.1 of the PA Department of Environmental Protection Guidance Document 394-5600-001, entitled Riparian Forest Buffer Guidance. b. Zone 2 shall begin at the landward edge of Zone 1 and occupy an additional strip of land a minimum of 50 feet in width, measured horizontally on a line perpendicular from the top of the streambank or normal pool elevation of a lake, pond, or reservoir. Predominant vegetation must be composed of a variety of native riparian trees and small tree/shrub species identified in Appendix C.1 of the PA Department of Environmental Protection Guidance Document, 394-5600-001, entitled Riparian Forest Buffer Guidance.

10. No earth disturbance, land development, or storing or stockpiling of materials shall occur within the riparian forest buffer area.

11. In the management of riparian buffers, noxious weeds and invasive species shall be removed or controlled to the greatest extent possible.

12. Existing, converted, and newly established riparian buffers, including access easements, must be protected in perpetuity through deed description, conservation easement, permit conditions, or any other mechanisms that ensure the long-term functioning and integrity of the riparian buffer.

13. The riparian buffer shall be designated on the final subdivision and/or land development plan.

SECTION 3. REPEALER. All prior ordinances or parts of ordinances inconsistent herewith are hereby repealed to the extent they are inconsistent with this Ordinance. Except as expressly amended, nothing herein shall be deemed to affect or alter any other provision of the Township Ordinances.

SECTION 4. SEVERABILITY. If any section, subsection, sentence, clause, phrase or word of this Ordinance is for any reason held to be illegally or invalid by any court or administrative agency of competent jurisdiction, such illegal or invalid portion or provision shall be severable and shall not affect or impair any remaining portion of this Ordinance and Chapter, which shall remain in full force and effect.

SECTION 5. EFFECTIVE DATE. This Ordinance shall be effective five (5) days after enactment.

[Signatures appear on next page].

ENACTED AND ORDAINED this 11 day of NOVEMBER, 2026.

FAYETTE TOWNSHIP

Sharon K Lukens
Township Secretary

By: Christy A Strawn

By: Robert E. Barton Jr.

By: Cyz B